

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #:
Date Purchased:

-----x
JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

Plaintiff designates
NEW YORK County as
Place of Trial
Basis of venue is:
Place of Occurrence

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
"JOHN" JUILLET (FIRST NAME UNKNOWN),
POLICE OFFICER JOHN DOE 1, and POLICE
OFFICER JOHN DOE 2,

Plaintiff's Residence:
600 West 136th Street
New York, New York

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: April 21, 2021

DAVID HOROWITZ, P.C.

By: Joanna Plonska

Joanna Plonska
171 Madison Avenue, 1300
New York, New York 10016
(212) 684-3630

Defendants' Addresses:

CITY: 100 Church Street, New York, New York
P.O."JOHN" JUILLET (FIRST NAME UNKNOWN): One Police Plaza, NY, NY
and or 14th Precinct, 357 West 35th Street, New York, NY
P.O. JOHN DOE 1: Unknown
P.O. JOHN DOE 2: Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
"JOHN" JUILLET (FIRST NAME UNKNOWN),
POLICE OFFICER JOHN DOE 1, and POLICE
OFFICER JOHN DOE 2,

Defendants.

-----X

Plaintiff, JOSE ESCALONA-MARTINEZ, by his attorney, DAVID
HOROWITZ, P.C., complaining of the defendants, alleges upon
information and belief as follows:

1. That at all times hereinafter mentioned, the
defendant THE CITY OF NEW YORK was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of the
laws of the State of New York.

2. That at all times hereinafter mentioned, Police
Officer Juillet was employed by the New York City Police Department,
a division of the defendant THE CITY OF NEW YORK;

3. That at all times hereinafter mentioned, Police
Officer Juillet was employed by the defendant the CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Police
Officer Juillet was acting in the course of her/his employment and
further of the business of the New York City Police Department, a
division of the City of New York.

5. That at all times hereinafter mentioned, Police Officer Juillet was acting in the course of her/his employment and further of the business of the defendant THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Juillet.

7. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Juillet.

8. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Juillet.

9. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Juillet.

10. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Juillet.

11. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Juillet.

12. That at all times hereinafter mentioned, Police Officer John Doe 1 was acting in the course of her/his employment and further of the business of the New York City Police Department, a division of the City of New York.

13. That at all times hereinafter mentioned, Police Officer John Doe 1 was acting in the course of her/his employment and further of the business of the defendant THE CITY OF NEW YORK.

14. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer John Doe 1.

15. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer John Doe 1.

16. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer John Doe 1.

17. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer John Doe 1.

18. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer John Doe 1.

19. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer John Doe 1.

20. That at all times hereinafter mentioned, Police Officer John Doe 2 was acting in the course of her/his employment and further of the business of the New York City Police Department, a division of the City of New York.

21. That at all times hereinafter mentioned, Police Officer John Doe 2 was acting in the course of her/his employment and further of the business of the defendant THE CITY OF NEW YORK.

22. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer John Doe 2.

23. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer John Doe 2.

24. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer John Doe 2.

25. That at all times hereinafter mentioned, defendant

the CITY OF NEW YORK supervised Police Officer John Doe 2.

26. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer John Doe 2.

27. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer John Doe 2.

28. That on the 6th day of March 2020, a notice of claim was duly served upon the defendant THE CITY OF NEW YORK. That on the 13th day of March 2020, an amended notice of claim was duly served upon the defendant THE CITY OF NEW YORK and Police Officer Juillet.

29. That said amended notice of claim was duly served upon the defendant THE CITY OF NEW YORK within 90 days after the said cause of action of the plaintiff accrued.

30. That more than thirty days have elapsed since the service of the said amended notice of claim upon the defendant THE CITY OF NEW YORK.

31. That the defendant THE CITY OF NEW YORK and its comptroller have failed, neglected and refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

32. That a 50(h) hearing has not yet been held due to pending criminal charges, and the parties have agreed to permit plaintiff to commence the lawsuit pursuant to stipulation dated March 24, 2021.

33. That this action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

34. That plaintiff has duly complied with all of the conditions precedent to the commencement of this action with the exception of appearing for a 50H hearing. The parties have agreed to permit plaintiff to commence the lawsuit pursuant to stipulation.

35. That on January 24, 2020, at approximately 3:30P.M., while plaintiff was dressed in a Batman costume, and was lawfully standing across from the premises known as 1472 Broadway, New York, New York, and while within a designated activity zone in the Times Square Area, he took a photograph and then received a tip from a customer and then only after conducted his business transaction also known as designated activity, he stepped out of the designated activity zone and was just standing and talking to co-workers, and it was at this time that he was improperly and illegal stopped, detained, videotaped and directed to unmask wherein he was improperly accused of receiving a tip outside the designated activity zone by Police Officer Juillet from the 14th Precinct, and Police Officer Juillet mentioned to plaintiff that he had previously arrested him, and that after Police Officer Juillet consulted with other officers at the scene and on the telephone, Police Officer Juillet improperly detained, improperly arrested, improperly imprisoned and improperly issued a desk appearance ticket to plaintiff to appear in court and improperly charged claimant with a violation of New York Admin Code 4-16(e)(4)(1).

36. In Criminal Court at 314 West 54th Street, New York,

NY, plaintiff rejected any plea deals. That the matter was adjourned on several occasions including to a trial date set for March 26, 2020 which said trial was adjourned due to the Covid19 pandemic. At the present time, plaintiff's criminal matter is still pending.

37. Plaintiff was falsely detained, falsely arrested, falsely imprisoned, retaliated against, issued a DAT and maliciously prosecuted all due to the negligence and recklessness of the defendant THE CITY OF NEW YORK, Police Officer Juillet, Police Officer John Doe 1 and Police Officer John Doe 2 and its agents, servants and/or employees, all to plaintiff's damage and deprivation of freedom and deprivation of his civil rights.

38. That upon information and belief, and more particularly on January 24, 2020, and continuing thereafter, defendant THE CITY OF NEW YORK by and its agents, servants, employees, and defendants POLICE OFFICER JUILLET, POLICE OFFICER JOHN DOE 1, and POLICE OFFICER JOHN DOE 2, acting in the scope of their employment and in the furtherance of the business of the defendant THE CITY OF NEW YORK, without probable cause, without reason, without justification, provocation, and with malice, falsely detained, falsely arrested, falsely imprisoned, falsely issued a DAT and maliciously prosecuted and retaliated against plaintiff JOSE ESCALONA-MARTINEZ.

39. At the time of said false detainment and false arrest, plaintiff JOSE ESCALONA-MARTINEZ had committed no illegal

act and the defendant and its agents, servants, employees and police officers had no probable cause or reasonable belief that the plaintiff had committed an illegal act.

40. That the said Police Officer Juillet, Police Officer John Doe 1 and Police Officer John Doe 2 falsely detained, falsely arrested, falsely imprisoned, falsely issued a DAT and maliciously prosecuted the plaintiff, while employed by the New York City Police Department and acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

41. That the said Police Officer Juillet, Police Officer John Doe 1 and Police Officer John Doe 2, while acting in the course of their employment for the defendant THE CITY OF NEW YORK, and following the City of New York's improper training and custom and practice that discriminates and targets Times Square street performers including plaintiff, the defendant CITY OF NEW YORK and its officers, agents, employees and servants falsely detained, falsely arrested, falsely imprisoned, falsely issued a DAT and maliciously prosecuted the plaintiff, while acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

42. That the defendant THE CITY OF NEW YORK, through its police officers, including Police Officer Juillet, Police Officer

John Doe 1 and Police Officer John Doe 2 acted intentionally, willfully, knowingly, and maliciously in bringing about the false detainment, false arrest, false imprisonment, and malicious prosecution of plaintiff.

43. That the defendant, THE CITY OF NEW YORK, was negligent in its hiring and training practices of its police officers including Police Officer Juillet, Police Officer John Doe 1 and Police Officer John Doe 2; in that it retained officers not fit by temperament or personality to be officers; in failing to fire officers not fit for their position; in failing to instruct officers as to the civil rights of defendants; in failing to instruct and train officers on the rules and regulations of designated zones and designated activity in Times Square Area; in the malicious prosecution of plaintiff without probable cause; in detaining plaintiff without probable cause; in harassing plaintiff; in arresting plaintiff without probable cause; in imprisoning plaintiff without probable cause; in failing to have an arrest warrant; in failing to give Miranda Warnings; in following a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in taking plaintiff's freedom away; in failing to protect plaintiff; in violating plaintiff's rights under the New York State Constitution, violating plaintiff's right under the U.S. Constitution and federal statutes including 42 USC 1985, 1983 and 1981 in that plaintiff was deprived of his rights, privileges and

immunities afforded under the Federal Constitution and Federal Law; defendant THE CITY OF NEW YORK and defendants POLICE OFFICER JUILLET, POLICE OFFICER JOHN DOE 1, and POLICE OFFICER JOHN DOE 2 were negligent in failing to use such care in the performance of their duties as a police officer as a reasonably prudent police officer would have performed under similar circumstances including but not limited to failing to use ordinary care; failing to protect; failure to guard, failure to police; failure to serve the public; failure to supervise, failure to train, failure to manage, failure to instruct; in permitting the false detention, false arrest, false imprisonment and malicious prosecution of the plaintiff; in permitting a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in promulgating a custom, practice and policy that discriminates and targets Times Square street performers; in harassing the plaintiff; failing to train its officers; and in failing to avoid the occurrence although there was an opportunity to do so.

44. That the defendants POLICE OFFICER JUILLET, POLICE OFFICER JOHN DOE 1, and POLICE OFFICER JOHN DOE 2, failed to protect, and falsely detained and falsely arrested plaintiff without probable cause or reason, while acting as an officer, agent, employee and/or servant of the defendant THE CITY OF NEW YORK, and otherwise while acting on behalf of the defendant THE CITY OF NEW YORK.

45. That as a result of the above actions of the

defendants including its police officers, plaintiff suffered severe mental anguish, psychological trauma, intentional infliction of emotional distress, ridicule, harassment, embarrassment, emotional distress, anxiety, depression, fear of police, loss of freedom, and loss of quality of life, exacerbation of prior mental injury; all to his damage in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with punitive damages and the costs and disbursements of this action.

Dated: April 21, 2021

DAVID HOROWITZ, P.C.

By: Joanna Plonska
Joanna Plonska
171 Madison Avenue
New York, New York 10016
(212) 684-3630

ATTORNEY'S VERIFICATION

JOANNA PLONSKA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at DAVID HOROWITZ, P.C., attorneys of record for Plaintiff(s) **JOSE ESCALONA-MARTINEZ**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because my Plaintiff(s) is/are not presently in the county wherein I maintain my offices in Richmond County.

Dated: New York, New York
April 21, 2021

Joanna Plonska
JOANNA PLONSKA

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, POLICE OFFICER
"JOHN" JUILLET (FIRST NAME UNKNOWN),
POLICE OFFICER JOHN DOE 1, and POLICE
OFFICER JOHN DOE 2,**

Defendants.

SUMMONS AND COMPLAINT

DAVID HOROWITZ, P.C.

Attorneys for Plaintiff

171 Madison Avenue, Suite 1300

New York, New York 10016

(212) 684-3630

Pursuant to 22 NYCRR 130 1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 21, 2021

Joanna Plonska
JOANNA PLONSKA, ESQ.
